*BY ORDER OF THE SUPERINTENDENT*

# *AIR FORCE INSTRUCTION 51-903*

## *HQ UNITED STATES AIR FORCE ACADEMY Supplement*

***11 APRIL 2018***

***Law***

## *DISSIDENT AND PROTEST ACTIVITIES*

**COMPLIANCE WITH THIS PUBLICATION IS MANDATORY**

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Air Force Instruction (AFI) 51-903, *Dissident and Protest Activities*, is supplemented as follows: This supplement establishes procedures for obtaining approval to conduct protest activities, including the distribution of literature, on Air Force Academy property. This publication applies to all Air Force, civilian, and contractor personnel. This publication does not apply to Air Force Reserve Command (AFRC) units or the Air National Guard (ANG). Refer recommended changes and questions about this publication to the Office of Primary Responsibility (OPR) using Air Force (AF) Form 847, *Recommendation for Change of Publication*; route AF Forms 847 from the field through the appropriate functional chain of command. The authorities to waive requirements in this publication are identified with a Tier 3 (T-3) number following the compliance statement. See AFI 33-360, *Publications and Forms Management*, for a description of the authorities associated with the Tier numbers. Submit requests for waivers through the chain of command to the appropriate Tier waiver approval authority. The waiver authority for non-tiered requirements in this publication is USAFA/JA. Ensure that all records created as a result of processes prescribed in this publication are maintained in accordance with (IAW) Air Force Manual (AFMAN) 33-363, *Management of Records*, and disposed of IAW Air Force Records Information Management System (AFRIMS) Records Disposition Schedule (RDS).

*SUMMARY OF CHANGES*

This revision aligns the instruction with AFPD 51-9, *Civil Law for Individuals*, and updates the instruction to implement DoDI 1325.6, 27, *Handling Dissident and Protest Activities Among Members of the Armed Forces*, November 2009. This revision simplifies the application process by removing distinctions and guidelines regarding proposed activities, and makes editorial clarifications.

4.3.1. Examples of such signs, which, in the absence of the active advocacy or active participation, could include mere membership in criminal gangs and other organizations covered under paragraph 4.1. Signs could also include possession of literature, or visiting websites, associated with such gangs or organizations, or with related ideology, doctrine, or causes. While mere membership, possession of literature or visiting such websites on a non-Government computer normally is not prohibited, it may merit further investigation and possibly counseling to emphasize the importance of adherence to the Department's values and to ensure that the service member understands what activities are prohibited.

6.3.1. **(Added)** USAFA) Individuals wishing to demonstrate or distribute unofficial printed or written documents at the Air Force Academy may do so under the following conditions:

6.3.1.1. **(Added)** USAFA) Activities under section 6.3.1. will only be allowed during periods when the Academy is observing standard visitor hours, typically every day from 9:00 a.m. to 5:00 p.m. but subject to change without notice as directed by the installation commander or their designee.

6.3.1.2. **(Added)** USAFA) Maintain a distance of no less than one hundred feet (100 ft.) from the outside of building entrances, gates, or steps leading to the building entrances or gates, without impeding or blocking pedestrian traffic.

6.3.1.3. **(Added)** USAFA) Individuals may not block others from using the sidewalk. Only about one-half the width of the sidewalk can be used and the individuals must be courteous to others trying to use the sidewalk. Individuals may not step into the street nor block traffic. Individuals may not sit or lie down on sidewalks or streets.

6.3.1.4. **(Added)** USAFA) Individuals may not create excessive or unusually loud noises. Any noise created by individuals must not be harmful to any person, endanger public safety, or unreasonably interfere with the quiet enjoyment of life of an individual of ordinary sensitivity and habits.

6.3.1.5. **(Added)** USAFA) Individuals may not conduct themselves in a manner that is disorderly, violent, boisterous, or tumultuous.

6.3.1.6. **(Added)** USAFA) It is the responsibility of any permitted group or organization to return the event site to the condition in which it was presented to them at the beginning of the event.

6.3.2. **(Added)** USAFA) Prior to any protest or dissident activity, individuals must request a permit in writing not less than thirty (30) calendar days before but no more than twelve (12) months prior to the date the event under **paragraph 6.3.1**. is scheduled to begin. A request template letter can be found in **Attachment 2**.

6.3.2.1. **(Added)** USAFA) Event permit requests must be submitted in writing to the following address: 10th Mission Support Group Commander (10 MSG/CC), 8034 Edgerton Drive, Ste. 250, USAF Academy, CO 80840. Requests must include the following information:

6.3.2.1.1. **(Added)** USAFA) The name, address, and telephone number for the person in charge of the proposed event and the name of the organization with which that person is affiliated or on whose behalf the person is applying;

6.3.2.1.2. **(Added)** USAFA) The name, address, and telephone number for an individual who shall be designated as the event group point of contact;

6.3.2.1.3. **(Added)** USAFA) The date, time, and place of the proposed event, including the time that the event will begin and end, and times for event setup and takedown;

6.3.2.1.4. **(Added)** USAFA) The anticipated number of persons expected to participate in the event and the basis on which this estimate is made;

6.3.2.1.5. **(Added)** USAFA) The plan for ensuring that adequate parking, restroom facilities, and trash receptacles are available in the vicinity of the event to accommodate the number of attendees. If accommodations are not pre-existing at the location, the plan must include these accommodations at the demonstration organization(s), individual, or group(s)' own expense;

6.3.2.1.6. **(Added)** USAFA) If adequate accommodations are not pre-existing on the installation, the permit request must include how these accommodations will be provided, at the individuals' expense;

6.3.2.1.7. **(Added)** USAFA) Two copies of the printed or written material to be distributed, and;

6.3.2.1.8. **(Added)** USAFA) Such other information as requested by the permit official that may be reasonably necessary to determine compliance with military rules and regulations.

6.3.2.2. **(Added)** USAFA) A permit request may be approved or denied within a reasonable time upon receipt of the request in accordance with the standards set forth in **paragraph 6.3.2**. A notice of denial shall set forth the grounds upon which the permit was denied and, where feasible, shall contain a proposal for measures by which the applicant may cure any defects in the application or otherwise procure a permit.

6.3.2.2.1. **(Added)** USAFA) Where an application is denied because the proposed event would conflict with another event that has or will be approved, an alternative location may be proposed, if available for the same time, or an alternative time, if available for the same place.

6.3.2.2.2. **(Added)** USAFA) Where an application is denied because the proposed event would take place at a location that cannot reasonably accommodate all of the expected participants, an alternative location may be proposed, if available for the same time, or it may be requested that the applicant reduce the number of participants to allow for accommodation.

6.3.2.2.3. **(Added)** USAFA) Where Security Forces determines that the event will result in a substantial interruption of the movement of traffic, it may be requested that the event be modified to a starting or ending time that least impacts the movement of traffic.

6.3.2.2.4. **(Added)** USAFA) Reasonable conditions to any permit approval may be attached as appropriate within the spirit and intent of this section, to include reasonable time, place, and manner restrictions deemed necessary for the protection and the safety of the participants, the

public, and the military installation. A sample approval memorandum can be found in Attachment 3.

6.3.2.2.5. **(Added)** USAFA) Permits will not be approved or denied based on the content of the demonstration.

6.3.2.3. **(Added)** USAFA) Appeals of any denials may be made to the 10th Air Base Wing Commander (10 ABW/CC), 8034 Edgerton Drive, Ste. 200, USAF Academy, CO, 80840. Appeals should state the reason for the appeal, include copies of the original request, with attachments, and the denial letter from the 10th Mission Support Group Commander.

6.3.3. **(Added)** USAFA) Failure to comply with the requirements of this instruction may result in debarment from the Air Force Academy (civilians), disciplinary action under the Uniform Code of Military Justice (members subject to the UCMJ), or prosecution under applicable Federal Law.

6.3.4. **(Added)** USAFA) Even when permission is granted, it is subject to cancellation without notice due to changes in the Air Force Academy's force protection condition or other security threat.

LINDSAY E. CONTOVEROS, Lt Col, USAF
Acting Staff Judge Advocate

## Attachment 1

## GLOSSARY OF REFERENCES AND SUPPORTING INFORMATION

***References***

AFI 33-360, Publications and Forms Management, 15 December 2015

**Attachment 2 (Added)**

**REQUEST TEMPLATE LETTER**

**To:** 10th Mission Support Group Commander (10 MSG/CC)
8034 Edgerton Drive, Ste. 250
USAF Academy, CO 80840

**Date:** (**Insert date of request here**)

**From:** (**Insert your group/organization name here**)

**Subject:** Request for protest/dissident activities to occur on or near USAFA, CO

1. PURPOSE. (**Brief paragraph explaining organization/group and brief overview of request purpose **)

2. CONTACT INFORMATION:

a. (**The name, address, and telephone number of group point of contact. **)

b. (**The name, address, and telephone number for an individual who shall be designated as the protest event on-site manager.**)

3. EVENT DETAILS. (**Brief paragraph explaining event details. Be sure to include: desired event date, event location, event setup time, event start time, event stop time, and event takedown time, **.)

4. ATTENDEES. (**Brief paragraph with the number of persons expected to participate in the event and the basis on which this estimate is made**.)

5. PARKING, TRASH, AND FACILITIES. (**Brief paragraph outlining the plan for ensuring that adequate parking, restroom facilities and trash receptacles are available in the vicinity of the event to accommodate the number of attendees.**)

6. ADDITIONAL INFORMATION. (**Brief paragraph summarizing other information requested by the permit official that may be necessary to determine compliance with military rules and regulations. Omit this paragraph if not required.**)

(NAME, Position, e.g., President)
(Organization)

Attachment:
Copies of Distribution Material

## Attachment 3 (Added)

## SAMPLE APPROVAL MEMORANDUM

[DATE]

MEMORANDUM FOR [INSERT GROUP NAME]

FROM: 10 ABW/CC

SUBJECT: Demonstration

1. You [HAVE/HAVE NOT] submitted a formal demonstration request IAW AFI 51-903_USAFASUP. I have been advised that your demonstration, currently planned for [LOCATION], may come onto the federal property of the United States Air Force Academy. If your demonstration does enter the Air Force Academy, your group of [NUMBER] people will be limited to a designated area.

2. IAW 50 U.S.C. §797, the authority is vested in me to govern security at the United States Air Force Academy. As the Installation Commander, it is my duty to protect personnel and property, maintain good order and discipline on the installation, and ensure the successful and uninterrupted performance of the Air Force mission. Due to increased security measures in light of the force protection condition level, and the potential interference with normal Academy business, your group may assemble in the designated area subject to the following directives:

a. [NUMBER] individuals may assemble between the hours of [START TIME] and [END TIME] in the designated area [SPECIFY LOCATION] on [DAY OF THE WEEK, FULL MONTH, DAY, YEAR]. The designated area may be marked by temporary barriers and its general location is provided on the attached map. You may not demonstrate outside of this designated area. **FAILURE TO STAY INSIDE OF THE DESIGNATED AREA MAY RESULT IN APPREHENSION OR ARREST.**

b. You may not possess or distribute marijuana while on the Air Force Academy, as Federal law prohibits possession and distribution of controlled substances, including marijuana.

c. To avoid obstructing traffic and ensure the safety of the participants and our personnel, you cannot distribute literature to oncoming traffic; however, you may hold banners or individual placards. You may not affix signs, placards, or any other postings on property of the U.S. Government.

d. Do not make any movements outside the designated area towards oncoming traffic. The distance from the roadway to the marked demonstration area is the minimum safe distance allowable. DO NOT cross that line. Your safety and that of our Academy staff and visitors is our primary concern.

e. If any of your participants will be driving vehicles, they may park near the above-mentioned designated area at the direction of Security Forces personnel.

f. Finally, when your demonstration concludes, your members should ensure the area is clear of any trash or debris. All signs or placards must be removed from the location.

3. Even though permission is granted subject to the conditions above, your event may be cancelled without notice due to changes in the Air Force Academy's force protection condition or other security threat.

4. Although an event such as this has the potential to cause a significant number of challenges, your event should occur without incident with the cooperation of all parties involved. My staff is available to meet with you to discuss limitations and to show you the location of assembly. You should direct any questions or changes to the 10th Security Forces Squadron at 719-333-2000 or the Office of the Staff Judge Advocate at 719-333-3920.

Sincerely,

[10 ABW/CC NAME], Colonel, USAF
Commander

Attachment:
Map of designated area (1 page)

Please Acknowledge Receipt:

_____ _____
Signature Date
[NAME], [ORGANIZATION]